

JANE DOE v. COUNTY OF CALAVERAS

22CV46492

MOTION TO WITHDRAW AS COUNSEL

This case involves allegations of childhood sexual abuse, and the averred negligence of the County for permitting unsupervised visits between the plaintiff and her biological father. Before the Court is a motion by plaintiff's attorney to withdraw from the case.

An attorney may withdraw as counsel of record if the client breaches the agreement to pay fees, insists on pursuing invalid claims or an illegal course of conduct, or when other conduct by the client renders it unreasonably difficult for the attorney to do his job, including when there is a breakdown in the attorney-client relationship. If the attorney does not have the client's consent, he or she must proceed by way of noticed motion consistent with CCP §§ 284 and 1005, CRPC 1.16 and CRC 3.1362. The motion must be verified, must utilize the designated Judicial Council forms MC-051 – MC-053, and must set forth sufficient detail to permit a trial court to discharge its duty of inquiry regarding the grounds for the motion. (See *Flake v. Neumiller & Beardslee* (2017) 9 Cal.App.5th 223, 230; *Manfredi & Levine v. Superior Court* (1998) 66 Cal.App.4th 1128, 1134-1136; *Aceves v. Superior Court* (1996) 51 Cal.App.4th 584, 592-593.)

Counsel has failed to provide even a scintilla of facts supporting the desire to abandon the case. Although counsel offers to provide more details in camera, any such proffer would have to be in the presence of the client – whom counsel did not assure would attend. As such, the supporting declaration requires more information.

In addition, all papers in support of the motion must be personally delivered or mailed to the client's "current" address (as confirmed within last 30 days). CRC 3.1362(d)(2) requires the attorney to serve the papers on the client at an address which was actually confirmed to be accurate within the preceding 30 days. If an address cannot be confirmed, and counsel can show due diligence, service can be made to the client's last known address and on the clerk of the court. (CCP §1011(b) and CRC 3.252.) Here, counsel has reportedly utilized the "general delivery" version of mail but without identifying the City center to which general delivery is made, the name upon which the mail is to be held, or that plaintiff actually uses "general delivery" as her primary address. The fact that she *may* qualify for appearances via pseudonym does not obviate the fact that this Court (and for that matter the defendant) will be required to have a good mailing address for plaintiff. She can open a PO Box and have mail sent there using a unique pseudonym.

Motion denied without prejudice. The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal CRC 3.1312 order is required.

LEHR v. ESQUIVEZ

23CV46620

MOTION TO STRIKE PRAYER FOR PUNITIVE DAMAGES

This is a personal injury dog bite case. Before the Court is a defense motion to strike plaintiff's prayer for punitive damages.

Pursuant to CCP §§ 435 and 436, a party may move for an order striking from a pleading "any irrelevant, false or improper matter" or "any part of any pleading not drawn in conformity" with laws, rules or orders. (See *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683.) According to defendant, the prayer for punitive damages is not drawn in conformity with the laws due to a lack of sufficient averments.

Contrary to popular folklore, there is no heightened pleading requirement for a punitive damage prayer based on malice or oppression. However, in light of the future evidentiary burden facing plaintiff, it is reasonable to consider that the averments should at least permit a factfinder to have "no substantial doubt" that defendants' were guilty of malice. (*Amerigraphics, Inc. v. Mercury Cas. Co.* (2010) 182 Cal.App.4th 1538, 1559.) To adequately plead a claim for punitive damages under the malice rubric, one must plead with specificity facts demonstrating (1) defendant's conduct was "despicable" and that (2) defendant acted with a willful and conscious disregard for the safety of another in the commission of said conduct. Despicable conduct is conduct that is "so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people [and] having the character of outrage frequently associated with crime." (*Scott v. Phoenix Schools, Inc.* (2009) 175 Cal.App.4th 702, 716.) Stated another way, "punitive damages are appropriate if the defendant's acts are reprehensible ... [and which] could be described as evil, criminal, recklessly indifferent to the rights of the [plaintiff], or with a vexatious intention to injure." (*Food Pro International, Inc. v. Farmers Ins. Exchange* (2008) 169 Cal.App.4th 976, 994-995.)

There are not many cases finding conduct despicable in the context of non-intentional wrongdoing. (See, e.g., *Sumpter v. Matteson* (2008) 158 Cal.App.4th 928, 936 [driving recklessly, while impaired, was despicable]; *Lackner v. North* (2006) 135 Cal.App.4th 1188, 1210 [skiing recklessly, but not impaired, not despicable]; *Pfeifer v. John Crane, Inc.* (2013) 220 Cal.App.4th 1270, 1300-1301 [failure to warn of product's carcinogenic properties was despicable]; *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1221-1222 [sexually abusing a minor was despicable].) The parties have not cited, and this Court has not uncovered, any California precedent on point; However, the Court of Appeals of North Carolina has addressed this precise issue, and formulated the following rule, which this Court finds persuasive: